

quash deposition subpoena. The motion to compel is granted as to requests for production numbers 5, 9, and 14. The motion to compel is granted in part as to requests for production numbers 6 through 8 and 10 through 13, although responses shall be limited to city officials who held public office at some point from the date the Facebook group was created in August 2024 to the date of this order.

Motion for Stay

Plaintiff the City of Lincoln's motion for stay was withdrawn by stipulation of the parties. (Order filed June 30, 2026.)

Motion for Leave to File a Cross-Complaint

Defendant The Gathering Inn's motion for leave to file a cross-complaint was granted on June 30, 2026 by stipulation of the parties. (Order filed June 30, 2026.)

5. S-CV-0054113 Christenson, Kyle D v. Auburn CDJR

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint in its entirety. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of "conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts." (*Spencer*, 88 Cal.App.5th at 861.)

Plaintiff's first cause of action alleges general negligence. Plaintiff alleges his Dodge RAM caught fire after defendant performed repair services by replacing a fuel system part covered by a recall and that defendant has admitted fault. (See complaint at 4.) Plaintiff alleges damages caused by defendant's negligent repairs. Defendant argues this claim is barred by the economic loss rule. (Mot. J. Pleadings at 3-4.)

The economic loss rule provides that, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) For claims arising from

alleged product defects, “[e]conomic loss consists of ‘damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.’” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.)

...

“the rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties.” (*Sheen, supra*, 12 Cal.5th at p. 922, citing *Robinson, supra*, 34 Cal.4th at p. 988 and other cases.) The Restatement states this form of the economic loss rule as follows: “[T]here is no liability in tort for economic loss caused by negligence in the performance or negotiation of a contract between the parties.” (Rest.3d Torts, Liability for Economic Harm, § 3; see *Sheen, supra*, at p. 923.)

(*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837-38.)

As noted in *Dhital*, the economic loss rule bars tort claims where the *litigating parties* have a contractual relationship and the alleged financial harm arises from performance of that contract and does not include other physical or property damage. However, in this case plaintiff does not allege a contractual relationship with the defendant and defendant confirms there is no such relationship. *Dhital* does not stand for the proposition that the economic loss rule prohibits tort claims between parties who are not in contractual privity with each other. Further, considering the allegations of the complaint as a whole, the court cannot find as a matter of law that the economic loss rule applies and bars plaintiff’s claim.

As to the first cause of action for negligence, defendant’s motion for judgment on the pleadings is denied.

Plaintiff’s second cause of action alleges intentional tort/intentional interference with contractual relations. Defendant argues the claim fails because defendant does not owe a duty to plaintiff for prejudgment damages and the claim is barred by the litigation privilege. (Mot. J. Pleadings at 4-7.)

“To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant’s knowledge of that contract; (3) the defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1148.) Plaintiff alleges defendant has admitted fault for the fire which totaled his vehicle but has refused to pay plaintiff for either the truck or his lost income. (Compl. at 4.) Plaintiff alleges defendant was informed that its failure to either repair, replace or pay for the vehicle, or provide a suitable substitute vehicle, was and is causing plaintiff to be unable to perform his contractual work obligations. (Compl. at 5.)

Here, the complaint fails to allege sufficient facts to state a claim for intentional interference with contractual relations. As to the second cause of action for intentional interference with contractual relations, defendant's motion for judgment on the pleadings is granted. The motion is granted without leave to amend as plaintiff fails to satisfy his burden of demonstrating the existence of additional factual allegations which could cure the deficiencies.

Defendant shall file an answer to plaintiff's complaint on or before **July 17, 2026**.

6. S-CV-0054901 Zehring, Richard v. General Motors

Motion to Compel Deposition

Plaintiff moves for an order compelling deposition of defendant's person most qualified ("PMQ") and production of deposition documents pursuant to Code of Civil Procedure section 871.26(c) and imposing monetary sanctions of \$2,500 against defense counsel pursuant to Code of Civil Procedure section 871.26(j). The motion is unopposed.

Plaintiff's motion was filed on January 20, 2026. However, plaintiff's evidence in support of motion showed the deposition of defendant's PMQ was scheduled by fourth amended deposition notice for February 3, 2026 and that plaintiff anticipated defendant would not comply with the deposition date. As there is no evidence the deposition of defendant's PMQ did not proceed as scheduled on February 3, 2026, the court previously continued this motion to permit plaintiff to update the court on whether deposition occurred. (Law and motion minutes, Jun. 9, 2026.) However, plaintiff has not filed any updates for the court.

Plaintiff has not submitted any evidence that the deposition of defendant's PMQ did not proceed as scheduled. The motion to compel deposition is denied without prejudice. The motion for monetary sanctions is likewise denied without prejudice.

7. S-CV-0057527 Alothman, Esra v. Alshannag, Safa

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **July 9, 2026, at 8:30 a.m. in Department 33** before Commissioner Michael A. Jacques.

Defendant's Motion to Set Aside

Defendant moves to set aside this court's order for a civil harassment restraining order. Plaintiff opposes the motion.

Although the California Constitution requires the appointment of an interpreter for an accused in a criminal case (Cal. Const., art. I § 14), and Evidence Code section 752 requires the appointment of an interpreter for a witness who is not fluent in English, there